Calendar Lines 1 and 2
Case Name: Brandon Giraldo v. Phuc Nguyen et al.
Case No.: 24CV436319

Demurrer to, and motion to strike, portions of plaintiff Brandon Giraldo's first amended complaint (FAC), filed by defendants Tuan Quoc Nguyen and Lexington Enterprises Group, Inc. Notice is proper and no timely opposition was filed. Plaintiff filed a request for a continuance on June 1, 2026, arguing that the failure to file an opposition was due to plaintiff's transition to self-represented status after his attorney substituted out of the case. The court denies the request for a continuance, but will review the demurrer and motion to strike on the merits.

The case involves a dispute over construction at plaintiff's residence. The FAC names as defendants T&T Construction (T&T); Phuc Huu Nguyen (referred to in the FAC and in this order as Andy); Tuan Quoc Nguyen (Tuan); Lexington Enterprises Group, Inc. (Lexington); and Doe defendants. The FAC alleges that Tuan was plaintiff's real estate agent when he bought the residence in June 2023. (FAC, ¶ 11.) Lexington was Tuan's "responsible broker," and has a real estate broker's license. (FAC, ¶¶ 8-9.) Tuan introduced plaintiff to Andy, who is the principal of T&T. (FAC, ¶ 13.) Plaintiff and T&T signed a construction contract in July 2023 to remodel the residence. (FAC, ¶ 13.) The FAC alleges Tuan "acted as project coordinator/redevelopment consultant for [plaintiff] and Andy." (*Id.*, ¶ 14.) It also alleges "Tuan and Andy persuaded [plaintiff] that the Work could and should be accomplished without any permits." (*Id.*, ¶ 15.) T&T engaged in construction work between July 2023 and November 2023. Plaintiff paid T&T over $156,000. (*Id.*, ¶ 17.) Plaintiff discovered that T&T was performing work without required permits, and that T&T's contractor's license had been suspended. (*Id.*, ¶ 19.) The FAC elsewhere alleges that T&T's contractor's license was suspended between August and December 2023. (*Id.*, ¶ 3.) Plaintiff eventually terminated T&T and instructed Tuan not to return to the residence. (*Id.*, ¶ 19.)

The FAC alleges five causes of action: (1) fraud (against T&T, Andy, and Tuan); (2) breach of contract (against T&T and Andy); (3) disgorgement (against T&T and Andy); (4) negligence (against T&T and Andy); (5) negligence (against Tuan and Lexington); and (6) negligence (against Lexington).

DEMURRER

Tuan and Lexington demur to the first, fifth, and sixth causes of action. They contend those causes of action fail to state facts sufficient to state causes of action against them. (Code Civ. Proc., § 430.10, subd. (e); unspecified statutory references are to this Code.) In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations. The court does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.)

First Cause of Action – Fraud (Against Tuan)

"The elements of fraud are (1) the defendant made a false representation as to a past or existing material fact; (2) the defendant knew the representation was false at the time it was made; (3) in making the representation, the defendant intended to deceive the plaintiff; (4) the plaintiff justifiably relied on the representation; and (5) the plaintiff suffered resulting damages." (*West v. JPMorgan Chase Bank, N.A*. (2013) 214 Cal.App.4th 780, 792, citation omitted.) Fraud must be pleaded with specificity. General or conclusory allegations are insufficient. A plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. In the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. (*Id*. at p. 793.) The specificity requirement serves two purposes. The first purpose is to give notice to the defendant with sufficiently definite charges. (*Ibid*.) The second is to permit a court to weed out meritless fraud claims on the basis of the pleadings; thus, the pleading should be sufficient to enable the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. (*Ibid*.)

The fraud cause of action is alleged against T&T, Andy, and Tuan. The FAC is not pleaded with sufficient specificity as to Tuan. The FAC alleges on information and belief that Tuan made misrepresentations about T&T's qualifications; stated that permits would slow down work; and stated that T&T should keep working despite its contractor's license being suspended. (FAC, ¶ 27.) Those general and conclusory allegations do not sufficiently state a fraud cause of action against Tuan. Tuan's demurrer to the first cause of action is sustained.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) Plaintiff failed to do so. But because this is the first pleading challenge, the court will grant leave to amend. The court does not grant leave to add any additional parties or causes of action.

Fifth Cause of Action – Negligence (Against Tuan and Lexington)

"An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of injuries suffered by the plaintiff." (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673.) "Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

The fifth cause of action lists both Tuan and Lexington as defendants. (FAC, p. 9:18-19.) It alleges Tuan, as a licensed realtor, is bound to follow the National Association of Realtors' Code of Ethics. It alleges Article 11 of that code states that realtors "shall not undertake to provide specialized professional services concerning a type of property or service that is outside their filed of competence unless they engage the assistance of one who is competent on such types of property or service, or unless the facts are fully disclosed to the client." (FAC, ¶ 55-57.) It alleges, on information and belief, that Tuan breached his professional responsibilities by acting as a construction project manager and by acting as an unlicensed salesperson for T&T. (FAC, ¶ 59-60.) The fifth cause of action contains no allegations about Lexington.

As an initial matter, the fifth cause of action fails to state a cause of action against Lexington because it is entirely devoid of allegations related to Lexington.

The FAC's fifth cause of action also does not state a cause of action as to Tuan. Although a negligence cause of action may be stated in general terms, it must nonetheless have allegations supporting each element of the cause of action. It is unclear whether plaintiff is alleging general negligence or professional negligence; those are different torts with different legal standards. The conclusory allegation that Tuan "acted as a project coordinator/redevelopment consultant," without more, does not adequately state a cause of action. The FAC's allegation that Tuan undertook professional services outside his field of competence without supervision is also inconsistent with the allegation that Tuan worked with T&T (which was a licensed contractor for at least part of the construction project).

The court will grant leave to amend as to Tuan. Any amendment must include greater detail about Tuan's involvement in the project. The demurrer to the fifth cause of action is sustained without leave to amend as to Lexington.

Sixth Cause of Action – Negligence (Against Lexington)

An employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. " 'Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.' " (*Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264.) " 'To establish negligent supervision, a plaintiff must show that a person in a supervisorial position over the actor had *prior* knowledge of the actor's propensity to do the bad act.' " (*Ibid.*)

The FAC's sixth cause of action alleges Lexington had a duty to properly train and supervise Tuan. The FAC alleges that Lexington breached that duty by allowing Tuan to advise plaintiff to undertake unlawful construction. (FAC, ¶ 67.) The fatal defect in the FAC's allegations against Lexington is that the extent of any duty Lexington had to supervise Tuan's behavior as a realtor ceased when escrow closed on the property. (See *Robinson v. Grossman* (1997) 57 Cal.App.4th 634, 646 ["The duties of real estate agents, even to their own clients, terminate 'when the subject matter of the agency is sold or otherwise disposed of.' "].) The FAC alleges that plaintiff bought the residence in June 2023. (FAC, ¶ 11.) Tuan's allegedly negligent actions in serving as a project coordinator all occurred after that date. The FAC also provides no allegations supporting a finding that Lexington knew or should have known that Tuan would undertake the bad acts alleged in the FAC.

The demurrer to the sixth cause of action is sustained. Plaintiff has not demonstrated a reasonable possibility that the complaint can be amended to overcome the defects as to Lexington. But because this is the first pleading challenge, the court will grant leave to amend. Any amendment must be factually consistent with the FAC's allegations.

MOTION TO STRIKE

Tuan and Lexington move to strike all references to emotional distress and punitive damages from the FAC. (See Notice of Motion to Strike, quoting FAC, ¶¶ 32, 33, 64, 65, Prayer No. 3.)

Under section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

Regarding punitive damages, the court's order sustaining the demurrer to the fraud cause of action as to Tuan means there is no cause of action supporting punitive damages left in the FAC. The motion to strike references to punitive damages in relation to Tuan is granted. But because the court is granting leave to amend the complaint as to the fraud cause of action, the motion to strike is likewise granted with leave to amend.

Regarding emotional distress, " 'unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by [breach of the independent duty]. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests.' " (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 555-556 & 548 [finding emotional distress damages were not recoverable in a negligent breach of construction contract action because the negligence caused only economic injury and the defendant breached no duty independent of contract].) The FAC does not allege that Tuan or Lexington assumed a duty to plaintiff in which plaintiff's emotional condition was an object. The court therefore grants the motion to strike references to emotional distress as to Tuan and Lexington. Although it seems unlikely plaintiff will be able to amend the complaint to allow for the recovery emotional distress damages, the court will grant leave to amend because this is the first pleading challenge.

The motion to strike is granted with leave to amend.

CONCLUSION

Tuan's demurrer to the FAC's first and fifth causes of action is SUSTAINED WITH LEAVE TO AMEND. Lexington's demurrer to the fifth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. Lexington's demurrer to the sixth cause of action is SUSTAINED WITH LEAVE TO AMEND. The court does not grant leave to add any additional parties or causes of action. The motion to strike references to emotional distress and punitive damages is GRANTED WITH LEAVE TO AMEND.

Any amended pleading must be filed and served no later than July 9, 2026.

The court will prepare the order.

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Calendar Line 3
Case Name: Creditors Adjustment Bureau v. JTAI Entertainment 1&2 LLC et al.
Case No.: 24CV451766

This is a limited civil debt collection action brought by plaintiff Creditors Adjustment Bureau, Inc. (CAB) against defendants JTAI Entertainment 1&2 LLC (JTAI), Jesus Fernandez, and Virginia Fernandez.

The original and still operative complaint filed in November 2024 alleges four causes of action against all defendants: (1) common count—open book account; (2) common count—account stated; (3) common count—reasonable value of good; and (4) breach of contract (two written contracts attached to the complaint as exhibits 1 and 2).

CAB seeks to recover $22,276.10 in debt, plus interest, owed by defendants to Bay Alarm Company, who assigned the claim to CAB. (See complaint at ¶¶ 1-5.) Self-represented defendants Jesus and Virginia Fernandez filed an answer to the complaint in January 2025. A default was entered against JTAI in January 2025.

Now before the court is CAB's motion for summary adjudication, opposed by Jesus and Virginia Fernandez (hereafter, Defendants). This motion was set for hearing on June 4, 2026 by the court's May 5, 2026 order. The case is currently set for a court trial on June 8, 2026.

LEGAL STANDARDS—SUMMARY JUDGMENT AND ADJUDICATION

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins*. (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an "issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass'n* (2010) 189 Cal.App.4th 947, 975 (*McClasky*); *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

"A plaintiff moving for summary adjudication meets its burden if it proves each element of the cause of action." (*Quidel Corp. v. Super. Ct*. (2020) 57 Cal.App.5th 155, 163.) If the plaintiff meets its burden, the defendant must set forth specific facts showing a triable issue of material facts exist. (*Id*. at p. 164.) The opposing party may be bound by admissions made in deposition testimony or verified responses to discovery. (*Shin v. Ahn* (2007) 42 Cal.4th 482, 500, fn. 12 ["a party cannot create an issue of fact by a declaration which contradicts his prior discovery responses."])

A reply "shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 252.)

DISCUSSION

CAB moves for summary adjudication of its fourth cause of action for breach of contract as brought against Defendants. (See CAB's notice of motion.)

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

CAB submitted the following admissible evidence: the supporting declarations of Doug Hewey, Director of Billing and Accounts Receivable for Bay Alarm (authenticating exhibits 1-6 to CAB's appendix of supporting evidence), and of CAB counsel Tiffanie Brown (authenticating exhibits 6-17 to CAB's Appendix). That evidence establishes that defendant Jesus Fernandez entered into a partnership agreement with Liliana Ortega and Javier Perez in March 2023 for the operation of two businesses, Maria's Night Club and Tony's Pool Hall. Defendant Virginia Fernandez was a witness to this agreement and the designated recipient for rent payments. (See CAB exhibits 17 and 18.) Iliana Ortega entered into written contracts with Bay Alarm on behalf of Maria's Night Club in April 2023 to provide alarm services for the business location. (See CAB exhibits 1-3.) For a time, payments were made to Bay Alarm by JTAI, with checks signed by Javier Perez. (See CAB exhibit 4.) Payments eventually ceased, with an outstanding balance of $22,276.10 owed to Bay Alarm. Bay Alarm assigned this unpaid debt to CAB. (See Hewey declaration and CAB exhibit 6.) CAB has also shown that Defendants own the property where Maria's Night Club is located, and that the liquor license used by the night club is in Defendants' names. (See CAB exhibits 7 and 8.)

The foregoing evidence is sufficient to meet CAB's initial burden to show that the contract with Bay Alarm was breached, and that Defendants are liable for the unpaid amount due on the contract as members of the partnership established for the operation of Maria's Night Club. (See Corp. Code § 16306, subd. (a) ["Except as otherwise provided in subdivisions (b) and (c), all partners are liable jointly and severally for all obligations of the partnership unless otherwise agreed by the claimant or provided by law"].)

When the burden shifts, Defendants do not raise any triable issues of material fact. Defendants have failed to submit the required opposing separate statement, which is itself a sufficient ground for granting the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) Self-represented litigants "are held to the same standards as attorneys" and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) The opposition filed by Defendants is a two-page document that denies liability. The opposition does not address any of CAB's evidence, including the evidence establishing a partnership agreement. No supporting declarations or other evidence has been submitted by Defendants.

CAB's motion for summary adjudication of the fourth cause of action is granted.

CONCLUSION

Plaintiff CAB's motion for summary adjudication of its fourth cause of action for breach of contract against Jesus Fernandez and Virginia Fernandez is granted.

Trial on the remaining causes of action remains as set.

The court will prepare the order.

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Calendar Lines 5-6
Case Name: Fang Xia v. Park Townsend Homeowners Association
Case No.: 25CV460436

At issue are two motions to compel filed by plaintiff Fang Xia: a motion to compel further responses to form interrogatories, set one; and a motion to compel further responses to requests for production, set one. Notice is proper and the motions are opposed by defendant Park Townsend Homeowners Association. The case involves a dispute over liability for damage to commercial property as a result of a water leak from a burst pipe.

Motion to Compel Further Responses to Form Interrogatories, Set One

Plaintiff moved to compel further responses to form interrogatory No. 15.1(A) and (C), which request facts and documents supporting "each denial of a material allegation and each special or affirmative defense." (Code Civ. Proc., § 2030.300.) Defendant has since supplemented its response to that interrogatory twice. Plaintiff's reply acknowledges the "Second Amended Responses addressed the issue compelled in this Motion." The motion is thus DENIED AS MOOT. The parties' requests for discovery sanctions related to this motion are DENIED.

Motion to Compel Further Responses to Requests For Production, Set One

Plaintiff moved to compel further responses to requests for production, set one, Nos. 1 through 36. (Code Civ. Proc., § 2031.310.) Defendant has since supplemented its responses to those requests for production. The court finds the majority of defendant's responses are now code-compliant. Plaintiff's reply argues defendant's responses are deficient as to the following items responsive to request Nos. 8 through 21: copies of work orders, proposals, and estimates from contractors. (Reply at 4:19-21.) A supplemental declaration by plaintiff's counsel includes excerpts from e-mail messages apparently produced by defendant in response to the requests for production. One refers to a reconstruction/build back proposal attached to the e-mail, but no proposal was apparently provided to plaintiff. (Jiang dec., 5/27/26, exh. 10.) To the extent defendant has that and other responsive attachments to e-mail messages, those must be produced. The court acknowledges defendant's contention in its supplemental response that it produced all responsive documents in its possession and that other documents may be in the possession of Grayson Community Management. The court also notes defendant indicated a willingness to subpoena Grayson for any responsive records to facilitate discovery.

The motion to compel is GRANTED IN PART as follows. As to RFP Nos. 8 through 21, defendant must produce any copies in its possession of responsive work orders, proposals, and estimates from contractors. Defendant must further subpoena Grayson Community Management for responsive records, and must produce those records to plaintiff upon receipt.

The parties' requests for discovery sanctions related to this motion are DENIED.

Order to Submit Other Pending Discovery Disputes to a Discovery Facilitator

The parties have reserved at least seven additional discovery-related motion hearings. The parties are ordered to submit those and all other pending discovery disputes to a discovery facilitator through the Santa Clara County Superior Court Discovery Facilitator Program.

(https://santaclara.courts.ca.gov/divisions/civil-division/civil-adr-providers/discovery-facilitator-program) **A stipulation regarding the parties' agreement to participate in that program must be filed no later than July 1, 2026.** The court will consider the parties' good faith participation (or lack thereof) in that process in determining whether to grant discovery sanctions, if those motions are not resolved informally.

The court will prepare the order.

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Calendar Line 7
Case Name: Martin Willerford v. Ford Motor Company et al.
Case No.: 25CV467350

Plaintiff Martin Willerford purchased a 2021 Ford Bronco (Subject Vehicle) in March 2022 from Ken Grody Redlands, LLC dba Ken Grody Ford (erroneously sued as Ken Grody Ford – Redlands; hereafter, Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that Dealership "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 49.) Plaintiff sued Dealership and Ford Motor Company in May 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:28-7:2.) The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

> Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A, p. 7.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: "**Agreement to Arbitrate**. By signing below, you agree that pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate." (*Id.*, at p. 1) Plaintiff's signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [" ' "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement." ' "].)

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. "The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet is burden by setting forth the agreement's provisions in the motion.' " (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 2:26-4:12.) In any event, "[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication." (*Gamboa, supra,* 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff's Claims

Here, the arbitration provision broadly applies to "[a]ny claim or dispute, whether in contract, tort, statute or otherwise…, between you and us…, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship." (Clayton Decl., Ex. A, p. 7.) Plaintiff's sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff's action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both "this contract" and "any resulting transaction or relationship" between the parties. Plaintiff's claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue "warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership]." (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer's attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff's claims.

The court does not reach Dealership's arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership's arguments on those points.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective." (Reply at p. 8:20-22.) Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. A case status review regarding arbitration will take place on February 4, 2027, at 11:00 a.m. in Department 10.

The court will prepare the order.

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